

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ROBERT TORRES and ANTHONY TORRES

Plaintiffs,

-against-

THE CITY OF NEW YORK and POLICE OFFICERS
"JOHN DOE 1-10", in their official capacities, and
individually (the names being fictitious as their true names
are presently unknown),

Defendants.
-----X

Index No.:

Date of Purchase:

SUMMONS

Plaintiffs designate
NEW YORK COUNTY
as the place of trial.

The basis of venue is the
county in which the cause
of action arose

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a
copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance on the Plaintiffs' attorneys within twenty days after the service of this summons,
exclusive of the day of service, where service is made by delivery upon you personally within the
state, or, within 30 days after completion of service where service is made in any other manner. In
case of your failure to appear or answer, judgment will be taken against you by default for the relief
demanded in the complaint.

Dated: New York, New York
June 9, 2014



The Law Offices of Regina L. Darby
By: Anthony Loman, Esq.
Attorneys for the Plaintiffs
111 John Street, Suite 800
New York, New York 10038
(212) 480-3236

TO: THE CITY OF NEW YORK
c/o Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

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**VERIFIED
COMPLAINT**

Plaintiffs ROBERT TORRES and ANTHONY TORRES by and through their attorneys, THE
LAW OFFICES OF REGINA L. DARBY, complaining of the defendants herein, shows to the court
and alleges the following upon information and belief:

1. Plaintiff ROBERT TORRES was and still is a natural person who resides in the
County of Kings, in the City and State of New York.
2. Plaintiff ANTHONY TORRES was and still is a natural person who resides in the
County of RICHMOND in the City and State of New York.
3. Upon information and belief, the Defendant CITY OF NEW YORK, (hereinafter
“NYC”) was and still is a domestic municipal corporation, duly organized and
existing under and by virtue of the laws of the State of New York.
4. Upon information and belief, the New York City Police Department (hereinafter
“NYPD”) was and still is an agency of NYC and subject to its control.

5. Upon information and belief, at all times hereinafter relevant defendant NYC employed Police Officer employees "JOHN DOE 1-10" (the names being fictitious as their true names are presently unknown) in connection with the operation of the NYPD.
6. Upon information and belief, at all times hereinafter mentioned, the individually named Defendant NYPD employees, "JOHN DOE 1-10", were duly appointed and acting police officers employed by NYPD.
7. Upon information and belief, at all times hereinafter mentioned, Defendant NYPD employees, "JOHN DOE 1-10", were acting in their official capacities as NYPD Officers under the color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of NYC, NYPD, the State of New York and the United States Constitution.
8. Upon information and belief, at all times hereinafter mentioned, each and all of the acts of the defendant NYPD employees, "JOHN DOE 1-10", alleged herein were done while acting in furtherance of their employment by defendant NYC.
9. Upon information and belief, at all times hereinafter mentioned, NYPD employees, "JOHN DOE 1-10", were residents of the State of New York.
10. On December 20, 2013 Plaintiffs filed an Order to Show Cause under index number 161178/2013 seeking an order allowing Plaintiffs to serve a late notice of claim.

11. On May 12, 2014, the Honorable Kathryn Freed granted an order allowing Plaintiffs to serve a late notice of claim. (See Annexed **Exhibit A**).
12. Pursuant to the May 12, 2014 Order, Plaintiffs' proposed Notice of Claim was deemed timely filed against Defendant NYC on the condition that Plaintiffs served Defendant NYC with authorizations to obtain Plaintiffs' Criminal Court files within 30 days.
13. On May 14, 2014 Plaintiffs served the City of New York authorizations to obtain the Plaintiffs' Criminal Court files.
14. Pursuant to the May 12, 2014 Order, Plaintiffs were also ordered to serve a Notice of Claim on the Comptroller of the City of New York within 30 days.
15. On May 14, 2014, Plaintiffs served a copy of the Notice of Claim on the Comptroller of the City of New York.
16. Pursuant to the May 12, 2014 Order, a 50-H hearing shall be held only after Plaintiffs commence an action under a new index number.
17. This action is commenced within one year and ninety days after the action accrued as required by law.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND FALSE IMPRISONMENT

18. Plaintiffs repeat and reallege each and every allegation set forth and contained in paragraphs "1" through "17" inclusive, with the same force and effect as if fully set forth herein at length.

19. On or about April 19, 2013, at approximately 4:30 PM in the County of New York, City and State of New York, Plaintiffs were intentionally stopped, searched, detained, photographed, fingerprinted and confined without probable cause or reasonable suspicion that he had committed any crime and with actual malice by NYPD employees "JOHN DOE 1-10". Plaintiffs were conscious of all of the above and did not consent to same.
20. On or about April 21, 2013 at approximately 2:00 am, Plaintiffs were released from detention and custody.
21. The false arrest and imprisonment of the Plaintiffs had no basis in fact or law and was not otherwise privileged.
22. At the time of the false arrest and false imprisonment of the Plaintiffs, the Defendants "JOHN DOE 1-10", were acting within the scope of their employment as an officers, agent, servant and/or employees of the NYPD and under color of law.
23. On or about November 27, 2013 the Criminal Court dismissed all charges alleged against the Plaintiffs.
24. The provisions of Article 16 of the CPLR are not applicable herein because the conduct of the defendant NYPD employees was intentional and/or reckless.
25. By reason of the Defendants' actions in the foregoing false arrest and false imprisonment, the Plaintiffs were caused to suffer serious, painful and permanent personal, physical and mental injuries, great emotional stress, humiliation, shame,

indignity, embarrassment and to be otherwise injured in an amount that exceeds the jurisdictional limitations of all lower courts that might have jurisdiction over this action.

26. The false arrest and false imprisonment of Plaintiffs was wanton, willful and malicious and Plaintiffs are entitled to an award of punitive damages in an amount to be determined upon the trial of this action

AS AND FOR A SECOND CAUSE OF ACTION
MALICIOUS PROSECUTION

27. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs "1" through "26" inclusive, with the same force and effect as if fully set forth herein at length.
28. Defendant THE CITY OF NEW YORK, through its agents, servants and employees, initiated, maintained and prosecuted the criminal charges against Plaintiffs with actual malice, to wit a prosecuted for criminal sale and criminal possession of a controlled substance in the 4th degree, and other related crimes
29. That said prosecution of all charges was unreasonable and without basis and were brought without probable cause.
30. As result of said prosecution, the Plaintiffs had to appear numerous times for court appearances.
31. The charges against the Plaintiffs were dismissed in their entirety on November 27, 2013.

32. By reason of said malicious prosecution, Plaintiffs sustained severe and permanent psychological pain including but are not limited to, anxiety, depression, embarrassment, emotional distress, post-traumatic stress disorder, depressive disorder, loss of reputation, and a resulting loss of enjoyment of life.
33. That the aforesaid incident was due solely to the negligence, carelessness and recklessness of the Defendants, its employees, agents, licensees and/or servants without fault or want of care on the part of the Plaintiffs contributing thereto.
34. By reason of the foregoing, the Plaintiffs were caused to suffer severe and permanent psychological injuries, and to be otherwise injured.

AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT

35. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs "1" through "34" inclusive, with the same force and effect as if fully set forth herein at length.
36. On or about April 19, 2013, in the County of New York, City and State of New York, Defendant police officers, "JOHN DOE 1-10", without just cause or provocation intentionally assaulted the Plaintiffs by placing them in reasonable apprehension of an imminent harmful or offensive bodily contact.
37. At all times pertinent to these allegations, Plaintiffs were unarmed and did not pose a threat of death or serious bodily harm to the Defendants or to the general public.

38. At no time did any of the Defendant police officers "JOHN DOE 1-10", have probable cause to believe that either Plaintiff had committed or was committing a crime.
39. Defendant police officers, "JOHN DOE 1-10" acted jointly and in concert with each other in assaulting Plaintiffs. Each defendant had the opportunity to protect the Plaintiffs from the unlawful actions of the other defendant, but each failed and refused to perform such duty thereby causing injuries to the Plaintiffs.
40. The provisions of Article 16 of the CPLR are not applicable herein because the conduct of the defendant NYPD employees was intentional and/or reckless.
41. By reason of the Defendants' actions in the foregoing assault, the Plaintiffs were caused to suffer serious, painful and permanent personal, physical and mental injuries, great emotional stress, humiliation, shame, indignity, embarrassment and to be otherwise injured in an amount that exceeds the jurisdictional limitations of all lower courts that might have jurisdiction over this action.
42. The assault of Plaintiffs was wanton, willful and malicious and Plaintiffs are entitled to an award of punitive damages in an amount to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR BATTERY

43. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs "1" through "42" inclusive, with the same force and effect as if fully set forth herein at length.

44. On or about April 19, 2013, "JOHN DOE 1-10" jointly and severally in their capacity as police officers intentionally and wrongfully punched, grabbed, handcuffed and otherwise used unwarranted physical force and offensive contact with the Plaintiffs.
45. Defendant police officers, "JOHN DOE 1-10" acted jointly and in concert with each other in assaulting Plaintiffs. Each defendant had the opportunity to protect the Plaintiffs from the unlawful actions of the other defendant, but each failed and refused to perform such duty thereby causing injuries to the Plaintiffs.
46. At no time did the Defendants "JOHN DOE 1-10" have legal cause to grab, handcuff, touch or threaten the Plaintiffs, nor did the Plaintiffs consent to this illegal touching, nor was it privileged by law.
47. The battery of Plaintiffs was wanton, willful and malicious and Plaintiffs are entitled to an award of punitive damages in an amount to be determined upon the trial of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND
SUPERVISION

48. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs "1" through "47" inclusive, with the same force and effect as if fully set forth herein at length.
49. Defendant NYC was responsible for hiring and training police officers, including the defendant NYPD employees herein, who are competent and capable of

properly carrying out their jobs without causing injury to persons, including Plaintiffs herein.

50. Defendant NYC was negligent, reckless and careless in the hiring, training, retention and supervision of NYPD employees, including, *inter alia*, the defendant NYPD employees “JOHN DOE 1-10”.
51. Defendant NYC negligently recklessly and carelessly failed to investigate and determine whether the defendant NYPD employees “JOHN DOE 1-10” were capable and competent to carry out their jobs without causing injury to persons, including the Plaintiffs herein.
52. The provisions of Article 16 of the CPLR are not applicable herein because the conduct of the defendant NYPD was intentional and/or reckless.
53. Upon information and belief, prior to the incident at issue in this action, the defendant NYPD employees “JOHN DOE 1-10 had exhibited behavior indicating that they were unable to perform their duties as NYPD employees in a capable and competent manner.
54. As a result of the negligence, recklessness and carelessness of NYC in the hiring, training, retention and supervision of defendant NYPD employees, Plaintiffs were caused to suffer serious, painful and permanent personal, physical and mental injuries, great emotional stress, humiliation, shame, indignity, embarrassment and to be otherwise injured in an amount that exceeds the jurisdictional limitations of all lower courts that might have jurisdiction over this action.

55. The negligence, recklessness and carelessness of NYC in the hiring, training, retention and supervision of defendant NYPD employees was wanton, willful and malicious and Plaintiffs are entitled to an award of punitive damages in an amount to be determined upon the trial of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
ARTICLE 1, SECTION 11 OF THE NEW YORK STATE
CONSTITUTION

56. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs "1" through "55" inclusive, with the same force and effect as if fully set forth herein at length herein.
57. The Acts of Defendants "JOHN DOE 1-10" acting under color of law, in subjecting Plaintiffs to unlawful search, seizure, and assaulting Plaintiffs were done without reasonable suspicion or probable cause violated their Constitutional rights as guaranteed by Article 1, Section 11 of the Constitution of the of the State of New York.
58. The as a result Plaintiffs are entitled to an award of damage in an amount to be determined upon the trial of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
ARTICLE 1, SECTION 12 OF THE NEW YORK STATE
CONSTITUTION

59. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs “1” through “58” inclusive, with the same force and effect as if fully set forth herein at length herein.
60. The Acts of Defendants “JOHN DOE 1-10” acting under color of law, in subjecting Plaintiffs to unlawful search, seizure, and assaulting Plaintiffs were done without reasonable suspicion or probable cause violated their Constitutional rights as guaranteed by Article 1, Section 12 of the Constitution of the of the State of New York.
61. The as a result Plaintiffs are entitled to an award of damages in an amount to be determined upon the trial of this action.

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR VIOLATION OF 42 U.S.C. § 1983

62. Plaintiffs repeat and reallege each and every allegation set forth and contained in Paragraphs “1” through “61” inclusive, with the same force and effect as if fully set forth herein at length.
63. Defendant NYPD employees, “JOHN DOE 1-10”, acting under color of law and within the scope of their authority of the Plaintiffs in violation of 42 U.S.C. § 1983.

64. The false arrest of the Plaintiffs by the defendant NYPD employees when Plaintiffs were unarmed, did not pose a threat of bodily injury to the defendant NYPD employees or others, and was done with actual malice towards Plaintiffs and with willful, wanton indifference to and deliberate disregard for the Constitutional and statutory civil rights of the Plaintiffs
65. The false arrest and false imprisonment of Plaintiffs by defendant NYPD employees deprived Plaintiffs of their civil rights in violation of 42 U.S.C. § 1983.
66. The deprivation by defendant NYPD employees of Plaintiffs' civil rights was a result of defendant NYPD employees acting under color of law and within their authority as law enforcement officers within the employ of NYC and NYPD.
67. The actions of Defendants "JOHN DOE 1-10" were not privileged or immune when they assaulted, battered, falsely arrested and falsely imprisoned the Plaintiffs.
68. The provisions of Article 16 of the CPLR are not applicable herein because the conduct of the defendant NYPD employees was intentional and/or reckless.
69. By reason of the defendants' actions in the foregoing Violation of 42 U.S.C. § 1983, the Plaintiffs were caused to suffer serious, painful and permanent personal, physical and mental injuries, great emotional stress, humiliation, shame, indignity, embarrassment and to be otherwise injured in an amount that exceeds the

jurisdictional limitations of all lower courts that might have jurisdiction over this action.

70. The violation by defendants of Plaintiffs' Constitutional and statutory civil rights was wanton, willful and malicious and Plaintiffs are entitled to an award of punitive damages in an amount to be determined upon the trial of this action.

WHEREFORE, the Plaintiffs demand judgment against the defendant, THE CITY OF NEW YORK, for such sum of money as will be adequate compensation for the injuries and damages herein above sustained by the Plaintiffs as stated in the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action, with interest together with the costs and disbursements of this action.

Dated: New York, New York
June 9, 2014

Yours, etc.



The Law Offices of Regina L. Darby
By: Anthony Loman, Esq.
Attorneys for Plaintiff
111 John Street, Suite 800
New York, New York 10038
(212) 480-3236

ATTORNEY VERIFICATION

ANTHONY LOMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with the **LAW OFFICES OF REGINA L. DARBY**, attorney of record for Plaintiffs **ROBERT TORRES** and **ANTHONY TORRES**, in the within action. I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

My belief as to those matters therein not stated upon knowledge is based upon facts, records and other pertinent information contained in my files.

The reason this verification is made by me and not by the Plaintiffs is because I practice law in New York County, while my clients reside in Kings County and Richmond County

Dated: New York, New York
June 9, 2014



Anthony Loman